

Ms. Woody's Retaliation claim fails at the first element for the same reason as Ms. Sequeira's – the Complaint does not identify any instance in which Ms. Woody opposed conduct made unlawful by FEHA or participated in any FEHA proceeding.

Ms. Woody's only arguable protected activity is her April 2024 complaint against Mr. England and Mr. Aubrey arising from the accident-scene encounter. However, as discussed *ante*, that complaint concerned a perceived unlawful detention during the course of an investigation, not an opposition to discrimination, harassment, or retaliation based on a protected characteristic. A complaint about perceived unfair treatment or personal grievances that does not oppose conduct prohibited by FEHA does not constitute protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

As with Ms. Sequeira, the retaliation cause of action itself alleges only that Ms. Woody "opposed" Defendants' discrimination, harassment, and retaliation, without identifying any specific act of protected opposition or providing any factual basis connecting a complaint to any adverse action. (Compl. at 25:10-14.) These are bare, conclusory recitations of elements insufficient to state a claim. (*Blank, supra*, 39 Cal.3d at 318; *Doe, supra*, 42 Cal.4th 531, 551, fn. 5.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

VI. Conclusion

For the foregoing reasons, Defendants City of Richmond and Richmond Police Department's demurrer to the first through seventh causes of action is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all applicable Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

Before the Court is Defendant Jessica Michaelson Zapruder, Defendant Michael Zapruder, and Defendant Marjorie Zapruder (collectively, “Defendants”)’s Demurrer. The Demurrer relates to Plaintiff State Farm General Insurance Company (“State Farm” or “Plaintiffs”)’s subrogation complaint for (1) negligence and (2) breach of contract.

Defendant demurs to Plaintiff’s cause of action for breach of contract pursuant to Code of Civil Procedure (“CCP”) § 430.10(e) on several grounds.

For the following reasons, the Demurrer is **overruled-in-part** with respect to Jessica Michaelson Zapruder and Michael Zapruder, but **sustained-in-part** with leave to amend with respect to Marjorie Zapruder.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

This is a subrogation case for damages. State Farm alleges that their insured, Cameron Smith, leased the property at 421 Kahrs Avenue, Pleasant Hill, California 94523 to Jessica Zapruder and Michael Zapruder. (Marjorie Zapruder was added as a Defendant by doe amendment on January 1, 2026.) Plaintiff alleges on July 12, 2024 Defendants “caused a Weber Genesis propane fueled grill to catch fire which then spread and communicated to Plaintiff’s Insured’s

subject rental property, causing extensive property damage." (Complaint at ¶ 8.) Plaintiff further alleges that Defendants breached Lease provisions 1.16, 2.6, 2.7, 3.3, and 3.17. (*Id.* at ¶ 19.)

Analysis

Defendants argue that "Plaintiff's allegations, even if taken as true for purposes of demurrer, do not establish that Defendants breached any specific and enforceable contractual duty imposed by these lease provisions." (Dem. at 4:12-13.) The Court addresses each challenged lease provision alleged in the Complaint in turn.

Section 1.16

Section 1.16 [Tenant Insurance] of the Lease provides that "Landlord shall not insure Tenant for any personal injury or property damage. Tenant is: Required to buy and maintain renters or liability insurance. Tenant shall provide Landlord with evidence of required insurance prior to Tenant moving into Premises and upon request during the Term."

In connection with this section, the Complaint alleges that Defendants "compelled Plaintiff's insured to file a first-party insurance claim with its own carrier, State Farm General Insurance Company, in connection with the subject rental property following the incident that occurred on July 12, 2024." (Complaint at ¶ 20.)

The implication of this allegation is that Defendants did not buy and maintain renters or liability insurance which covered the loss on July 12, 2024. (A fact which is not expressly alleged in the Complaint.) However, as Defendants note, this interpretation characterizes section 1.16 as an indemnity provision, which would obligate Defendants to "indemnify the landlord or the landlord's insurer, or to ensure the landlord's ability to avoid a first-party insurance claim." (Dem. at 9:12-13.) That interpretation is not supported by the plain text of Section 1.16, which merely requires tenants to buy and maintain renters or liability insurance. And, as noted above, the Complaint does not actually allege that Defendants failed to obtain or provide required evidence of insurance.

Plaintiff has failed to allege a breach of section 1.16 of the lease agreement.

Section 2.6

Section 2.6 [Condition of Premises] of the Lease provides that:

Tenant acknowledges that prior to occupying the Premises, Tenant has examined the Premises and is satisfied with the condition, subject to those items specifically stated on the Property Condition Report (or like-titled document). By accepting possession of the Premises, Tenant acknowledges and agrees that no repairs or cleaning are required or requested. Tenant agrees and accepts the Premises “As Is” condition except for conditions causing the premises to be untenable under California Civil Code 1941.

The Complaint alleges that Defendants “breached this provision by causing a fire that damaged the home. They accepted the property in ‘As Is’ condition and agreed no repairs were needed. By causing significant damage, the tenant failed to maintain the condition of the property as agreed following the incident that occurred on July 12, 2024.”

Defendants argue that the move-in acknowledgment of the as-is condition of the premises does not create “an ongoing obligation to maintain the property in perpetuity as it was on move-in.” (Dem. at 9:26-27.)

Plaintiff argues in opposition that when section 2.6 is read in conjunction with section 3.12 of the lease, it created an obligation with Defendants “to return the Subject Property in good order, an obligation that was clearly breached as a result of the substantial damage caused by the fire loss incident.” (Opp. at 5:13-15.) However, the Complaint does not plead a breach of section 3.12.

Consequently, the Court declines Plaintiff’s invitation to read the two sections together.

Read in isolation, section 2.6 does not appear to impose an ongoing “as-is” maintenance obligation, such that Defendants would be required to continuously maintain the Premises in the same state that it was upon move in.

Plaintiff has failed to allege a breach of section 2.6 of the lease agreement.

Section 2.7

Section 2.7 [Notification of Building Problems or Repairs Needed] reads:

Tenant shall keep the Premises in good order and condition, and immediately pay for any repairs caused by Tenant’s negligence or misuse, that of their guests or Additional Occupant(s). Tenant agrees to notify Landlord immediately upon first discovering any repairs or maintenance needed, or signs of serious building

problems, including but not limited to: a crack in the foundation, a tilting porch, a crack in the plaster or stucco, moisture in the ceiling, buckling sheetrock or siding, a leaky roof, a spongy floor, any leaking or running water, appliance malfunction, and/or electrical shorting or sparks. Failure to report a problem may create a situation where the Tenant will be liable for damages due to the problem not being addressed sooner. Notwithstanding anything to the contrary in this Agreement, Landlord will pay for repairs of conditions that materially affect the health or safety of an ordinary resident (i.e., dangerous or hazardous conditions).

(Complaint at Ex. A § 2.7 [emphasis original].)

The Complaint alleges that Defendants “breached this provision by negligence and misuse of the Genesis propane fueled grill on the premises that caused a fire that damaged the home.” (Complaint at ¶ 21.)

Defendants argue that the Complaint does not plead any violation of the “core duties” imposed by Section 2.7, such as the duty “to promptly notify the landlord of a condition needing repair, or refusal/failure to perform a listed repair[.]” (Dem. at 10:13.)

Section 2.7 of the lease obligated Defendants to “keep the Premises in good order and condition.” The Complaint alleges that this provision was breached when Defendants allegedly caused the fire which damaged the property. (Complaint at ¶ 21.) This is sufficient to allege a breach of this provision of the lease agreement.

Section 3.3

Section 3.3 [Hazardous Materials] of the lease provides that: “Tenant shall not keep on the Premises any item of a dangerous, flammable, or explosive character that might unreasonably increase the danger of fire or explosion on the Premises, or that might be considered hazardous or extra hazardous by any responsible insurance company.”

The Complaint alleges that Defendants breached this provision “by operating a Genesis propane fueled grill on the premises, resulting in a fire. The presence and use of flammable materials, including the propane tank, unreasonably increased the risk of fire and created a hazardous condition, in direct violation of the lease provision prohibiting dangerous, flammable, or explosive items[.]”

(Complaint at ¶ 22.)

Defendants argue that [t]he mere presence and ordinary operation of a propane grill is not an item ‘of a dangerous, flammable, or explosive character’ within the meaning of Section 3.3, and its use is not a per se lease violation.”

Defendants further argue that in the absence of a specific prohibition on propane grills in the lease, their use is not a violation of the lease term. The Court cannot agree.

The Complaint has sufficiently alleged a breach of section 3.3 of the lease agreement.

Section 3.17

Section 3.17 [Attorney / Collection Fees] provides for the recovery of attorneys’ fees “should it become necessary for Landlord to employ an attorney to enforce any of the conditions or covenants hereof, or a collection company to recover any financial loss, including the collection of rents or gaining possession of the Premises.”

Defendants argue that “[s]ince Plaintiff’s contract claims are not viable under the aforementioned lease provisions, any demand for fees is not supported by the contract and should be rejected.” (Dem. at 11:8-10.) However, as described further above, Plaintiff has successfully alleged a breach of at least two provisions of the lease agreement. As a consequence, the demurrer on this ground is overruled.

Conclusion

Because a demurrer will not lie to a part of a cause of action, the Demurrer in its entirety must be overruled. (*Elder v. Pacific Bell Telephone Company* (2012) 205 Cal.App.4th 841, fn. 14 [“Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.”]; see also *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 119 [“A demurrer must dispose of an entire cause of action to be sustained.”].)

Here, Plaintiff has alleged a breach of at least one section of the lease agreement. Notwithstanding the pleading deficiencies with respect to the other sections of the lease agreement, that is sufficient to **overrule** Jessica Michaelson Zapruder and Michael Zapruder’s Demurrer to Plaintiff’s breach of contract cause of action.

However, with respect to Defendant Marjorie Zapruder, the Court notes that she was added through a Doe Amendment on January 20, 2026. She is not a signatory to the lease. Plaintiff's attachment of a co-signer agreement executed by Marjorie Zapruder in opposition is unavailing, as this document is neither referenced nor attached to the Complaint. As filed, the Complaint does not state any causes of action against Marjorie Zapruder. For that reason, the Marjorie Zapruder's demurrer to Plaintiff's breach of contract cause of action is **sustained**, with leave to amend. The Court encourages Plaintiff to revisit their breach of contract allegations as discussed above in any amended pleading.

Amended pleading to be filed within 15 days of service of notice of entry of this Order.

11. 9:00 AM CASE NUMBER: C25-02684
CASE NAME: DAN FOSTER, JR. VS. NOEL FUNEZ
*HEARING ON MINOR'S COMPROMISE AS TO THOMAS JOSEPH FOSTER
FILED BY: FOSTER, DAN, JR.
TENTATIVE RULING:

Before the Court is the Petition of Thomas Joseph Foster for Approval of Compromise of a Minor's Claim of Action (Petition). After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim submitted March 16, 2026.

12. 9:00 AM CASE NUMBER: C25-02684
CASE NAME: DAN FOSTER, JR. VS. NOEL FUNEZ
*HEARING ON MINOR'S COMPROMISE AS TO JERAMIAH LEE FOSTER
FILED BY: FOSTER, JERAMIAH LEE
TENTATIVE RULING:

Before the Court is the Petition of Jeremiah Lee Foster for Approval of Compromise of a Minor's Claim of Action (Petition). After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed